CHISHOLM, executor, *v.* GEORGIA.

Suits against states.

A state may be sued, in the supreme court, by an individual citizen of another state. And in such suit judgment may be entered, in default of an appearance.

THIS action was instituted in August term 1792. On the 11th of July 1792, the marshal for the district of Georgia made the following return :

"Executed as within commanded, that is to say, served a copy thereof on his excellency Edward Telfair, Esq., governor of the state of Georgia, and one other copy on Thomas P. Carnes, Esq., the attorney-general of said state. ROBERT FORSYTH, Marshal."

Upon which, Mr. *Randolph*, the Attorney-General of the United States, as counsel for the plaintiff, made the following motion, on the 11th of August 1792. "That unless the state of Georgia, shall, after reasonable previous notice of this motion, cause an appearance to be entered, in behalf of the said state, on the fourth day of the next term, or shall then show cause to the contrary, judgment shall be entered against the said state, and a writ of inquiry of damages shall be awarded." But to avoid every appearance of precipitancy, and to give the state time to deliberate on the measures she ought to adopt, on motion of Mr. *Randolph*, it was ordered by the court, that the consideration of this motion should be postponed to the present term. And now, *Ingersoll* and *Dallas* presented to the court a written remonstrance and protestation on behalf of the state, against the exercise of jurisdiction in the cause; but in consequence of positive instructions, they declined taking any part in arguing the question. The Attorney-General, therefore, proceeded as follows :

Randolph, for the plaintiff.—I did not want the remonstrance of Georgia, to satisfy me, that the motion which I have made, is unpopular. Before that remonstrance was read, I had learnt from the acts of another state, whose will must be always dear to me, that she too condemned it. On ordinary occasions, these dignified opinions might influence me greatly; but on *this, which brings into question a constitutional right, supported by my own conviction, to surrender it, would, in me, be official perfidy. [*420

It has been expressed, as the pleasure of the court, that the motion should be discussed, under the four following forms : 1st. Can the state of Georgia, being one of the United States of America, be made a party defendant in any case, in the supreme court of the United States, at the suit of a private citizen, even although he himself is, and his testator was, a citizen of the state of South Carolina? 2d. If the state of Georgia can be made a party defendant in certain cases, does an action of *assumpsit* lie against her? 3d. Is the service of the summons upon the governor and attorney-general of the state of Georgia, a competent service? 4th. By what process ought the appearance of the state of Georgia to be enforced?

I. The constitution and the judicial law are the sources from which the jurisdiction of the supreme court is derived. The effective passages in the constitution are in the second section of the third article. "The judicial power shall extend to controversies between a state and citizens of another state. In cases in which a state shall be a party, the supreme court shall have original

jurisdiction." The judicial act thus organizes the jurisdiction delineated by the constitution. "The supreme court shall have exclusive jurisdiction of all controversies of a civil nature, where a state is a party, except between a state and its citizens; and except, also, between a state and citizens of other states and aliens, in which latter case it shall have original, but not exclusive jurisdiction." Upon this basis we contend: 1st. That the constitution vests a jurisdiction in the supreme court over a state, as a defendant, at the suit of a private citizen of another state. 2d. That the judicial act recognises that jurisdiction.

1st. The constitution vests a jurisdiction in the supreme court over a state, as a defendant, at the suit of a private citizen of another state. Consult the letter of the constitution, or rather the influential words of the clause in question. The judicial power is extended to controversies between a state and citizens of another state. I pass over the word "between," as in no respect indicating who is to be plaintiff or who defendant. In the succeeding paragraph, we read a comment on these words, when it is said, that in cases in which a state shall be a *party* the supreme court shall have original jurisdiction. Is not a defendant a *party*, as well as a plaintiff? *421] If authority *be necessary for so notorious a definition, recur to 1 Harr. Ch. Pr. p. 35, where it is observed, that "in this court," that is, in the high court of chancery of England, "suits are generally commenced. prosecuted and *defended* by *parties* in their own names only." I might appeal, too, to a work of greater solemnity and of greater obligation; the articles of confederation. In describing the mode by which differences between two or more states shall be adjusted, they speak of a day to be assigned for the appearance of the *parties;* of each *party* alternately striking the names of the persons proposed as judges; of either *party* neglecting to attend; of striking names in behalf of a *party* absent; of any of the *parties* refusing to submit to the authority of the court; and of lodging the sentence among the acts of congress for the security of the *parties* concerned. Human genius might be challenged to restrict these words to a plaintiff state alone. It is, indeed, true, that according to the *order* in which the controversies of a state are mentioned, the state is the first; and from thence it may be argued, that they must be those in which a state is first named, or plaintiff. Nobody denies, that the citizens of a state may sue foreign subjects, or foreign subjects the citizens of a state. And yet, the expression of the constitution is, "between a state or the citizens thereof, and foreign states, citizens or subjects." The order, in this instance, works no difference. In common language, too, it would not violate the substantial idea, if a controversy, said to be between A. B. and C. D., should appear to be between C. D. and A. B. Nay, the opportunity fairly occurs, in two pages of the judicial article, to confine suits to states, as plaintiffs, but they are both neglected, notwithstanding the consciousness which the convention must have possessed, that the words, unqualified, strongly *tended*, at least, to subject states as defendants.

With the advantage of the *letter* on our side, let us now advert to the *spirit* of the constitution, or rather its genuine and necessary interpretation. I am aware of the danger of going into a wide history of the constitution, as a guide of construction; and of the still greater danger of laying any important stress upon the preamble, as explanatory of its powers. I resort, therefore, to the *body* of it; which shows that there may be various actions

of states, which are to be annulled. If, for example, a state shall suspend the privilege of a writ of *habeas corpus*, unless when in cases of rebellion or invasion the public safety may require it; should pass a bill of attainder or *ex post facto* law; should enter into any treaty, alliance or confederation; should grant letters of marque and reprisal; should coin money; should emit bills of credit; should make anything but gold and silver coin a tender in payment of debts; should pass a *law impairing the obligation of contracts; should, without the consent of congress, lay imposts or duties on imports or exports, with certain exceptions; should, without the consent of congress, lay any duty on tonnage, or keep troops or ships of war, in time of peace; these are expressly prohibited by the constitution; and thus is announced to the world, the probability, but certainly the apprehension, that states may injure individuals in their property, their liberty and their lives; may oppress sister states; and may act in derogation of the general sovereignty. [*422

Are states then to enjoy the high privilege of acting thus eminently wrong, without control; or does a remedy exist? The love of morality would lead us to wish that some check should be found; if the evil, which flows from it, be not too great for the good contemplated. The common law has established a principle, that no prohibitory act shall be without its vindicatory quality; or, in other words, that the infraction of a prohibitory law, although an express penalty be omitted, is still punishable. Government itself would be useless, if a pleasure to obey or transgress with impunity, should be substituted in the place of a sanction to its laws. This was a just cause of complaint against the deceased confederation. In our solicitude for a remedy, we meet with no difficulty, where the conduct of a state can be animadverted on, through the medium of an individual. For instance, without suing a state, a person arrested may be liberated by *habeas corpus;* a person attainted, and a convict under an *ex post facto* law, may be saved; those who offend against improper treaties may be protected, or who execute them, may be punished; the actors under letters of marque and reprisal may be mulcted; coinage, bills of credit, unwarranted tenders, and the impairing of contracts between individuals, may be annihilated. But this redress goes only half way; as some of the preceding unconstitutional actions must pass without censure, unless states can be made defendants. What is to be done, if, in consequence of a bill of attainder, or an *ex post facto* law, the estate of a citizen shall be confiscated, and deposited in the treasury of a state? What, if a state should adulterate or coin money below the congressional standard, emit bills of credit, or enact unconstitutional tenders, for the purpose of extinguishing its own debts? What, if a state should impair her own contracts? These evils, and others which might be enumerated like them, cannot be corrected, without a suit against the state. It is not denied, that one state may be sued by another; and the reason would seem to be the same, why an individual, who is aggrieved, should sue the state aggrieving. A distinction between the cases is supportable only on a supposed comparative inferiority of the *plaintiff. But the framers of the constitution could never have thought thus: they must have viewed human rights in their essence, not in their mere form. They had heard, seen, I will say, felt that legislators were not so far sublimed above other men, as to soar beyond the region of passion. Unfledged as America [*423

was in the vices of old governments, she had some, incident to her own new situation: individuals had been victims to the oppression of states.

These doctrines are moreover justified: 1st. By the relation in which the states stand to the federal government: 2d. By the law of nations, on the subject of suing sovereigns: and 3d. They are not weakened by any supposed embarrassment attending the mode of executing a decree against a state.

1st. I acknowledge, and shall always contend, that the states are sovereignties. But with the free will, arising from absolute independence, they might combine in government for their own happiness. Hence sprang the confederation; under which, indeed, the states retained their exemption from the forensic jurisdiction of each other, and, except under a peculiar modification, of the United States themselves. Nor could this be otherwise; since such a jurisdiction was nowhere (according to the language of that instrument) *expressly* delegated. This government of supplication cried aloud for its own reform; and the public mind of America decided, that it must perish of itself, and that the Union would be thrown into jeopardy, unless the energy of the general system should be increased. Then it was, the present constitution produced a new order of things. It derives its origin immediately from the people; and the people individually are, under certain limitations, subject to the legislative, executive and judicial authorities thereby established. The states are, in fact, assemblages of these individuals who are liable to process. The limitations which the federal government is admitted to impose upon their powers, are diminutions of sovereignty, at least, equal to the making of them defendants. It is not pretended, however, to deduce from these arguments alone, the amenability of states to judicial cognisance; but the result is, that there is nothing in the nature of sovereignties, combined as those of America are, to prevent the words of the constitution, if they naturally mean what I have asserted, from receiving an easy and usual construction. But pursue the idea a step further; and trace one, out of a multitude of examples, in which the general government may be convulsed to its centre without this judicial power. If a state shall injure an individual of another state, the latter must protect him by a remonstrance. What if this be ineffectual? To stop there, would cancel his allegiance; one
*424] state cannot sue another for such a cause; acquiescence is not to *be believed. The crest of war is next raised; the federal head cannot remain unmoved, amidst these shocks to the public harmony. Ought then a *necessity* to be created for drawing out the general force, on an occasion so replete with horror? Is not an adjustment by a judicial form far preferable? Are not peace and concord among the states, two of the greatest ends of the constitution? To be consistent, the opponents of my principles must say, that a state may not be sued by a foreigner. What? Shall the tranquillity of our country be at the mercy of every state? Or, if it be allowed, that a state may be sued by a foreigner, why, in the scale of reason, may not the measure be the same, when the citizen of another state is the complainant?

Nor is the history of confederacies wholly deficient in analogy; although a very strict one is scarcely to be expected. A parade of deep research into the Amphictyonic Council, or the Achæan league, would be fruitless, from the dearth of historical monuments. With the best lights, they would probably be found, not to be positively identical with our union. So little did they approach to a national government, that they might well be destitute

of a common judicatory. So ready were the ancient governments to merge the injuries to individuals in a state quarrel, and so certain was it, that any judicial decree must have been enforced by arms, that the mild form of a legal discussion could not but be viewed with indifference, if not contempt. And yet, it would not be extravagant, to conjecture, that all civil causes were sustained before the Amphyctionic Council.(*a*) What we know of the Achæan confederacy, exhibits it as purely national, or rather consolidated. They had common magistrates, taken by rotation from the towns;(*b*) and the amenability of the constituent cities to some supreme tribunal, is as probable as otherwise. But, in fact, it would be a waste of time, to dwell upon these obscurities. To catch *all* the semblances of confederacies, scattered through the historic page, would be no less absurd, than to search for light in regions of darkness, or a stable jurisprudence in the midst of barbarity and bloodshed. Advancing then, into more modern times, the Helvetic union presents itself; one of whose characteristics is, that there is no common judicatory. (Stanyan, 117.) Nor does it obtain in Holland. But it cannot be concluded from hence, that the Swiss, or the Dutch, the jealousy of whom would not suffer them to adopt a national government, would deem it an abasement, to summon a state, connected as the United States are, before a national tribunal. But our anxiety for precedents is relieved by appealing to the Germanic Empire. The jumble of fifty principalities together, no more deserves *the name of one body, than the incoherent parts of Nebuchadnezzar's image. The princes wage war, [542* without the consent of their paramount sovereign; they even wage war upon each other; nay, upon the emperor himself; after which, it will add but little to say, that they are distinct sovereignties. And yet, both the Imperial Chamber, and the Aulic Council hear and determine the complaints of individuals against the Prince.(*c*)

It will not surely be required to assign a reason, why the confederation did not convey a similar jurisdiction; since that scanty and strict paper was of so different a hue and feature from the constitution, as scarcely to appear the child of the same family.

I hold it, therefore, to be no degradation of sovereignty, in the states, to submit to the supreme judiciary of the United States. At the same time, by way of anticipating an objection, I assert, that it will not follow, from these premises, that the United States themselves may be sued. For the head of a confederacy is not within the reach of the judicial authorities of its inferior members. It is exempted by its peculiar pre-eminences. We have, indeed, known petitions of right, *monstrans de droit*, and even process in the exchequer. But the first is in the style of entreaty; the second, being apparent upon the record, is so far a deduction from the royal title; the third, as in the *Banker's case*, in the 11th volume of the State Trials, is applicable only, where the charge is claimed against the revenue; and all of them are widely remote from an involuntary subjection of the sovereign to the cognisance of his own courts.

2d. But what, if the high independence of dissevered nations remained

(*a*) See Anacharsis, 3 Vol. p. 300.
(*b*) See Gast's Hist. of Greece, p. 321.
(*c*) See History of Germanic Body, p. 157–8.

uncontrolled among the United States, so far as to place the individual states no more within the sphere of the supreme court, than one independent nation is within the jurisdiction of another? It has been a contest amongst civilians, whether one Prince, found within the territory of another, may be sued for a contract.(*a*) I do not assert the affirmative; but it is allowable to observe, that such a position, once conceded, would illustrate and almost settle the present inquiry. But the same author, who repudiates the former idea, is strenuous in the opinion, that where the effects or property of one Prince are arrested in the dominions of another, the proprietor Prince may be summoned before a tribunal of that other.[1] Now, although, each state has its separate territory, in one sense, the whole is that of the United States, in another. The jurisdiction of this court reaches to Georgia, as well as to Philadelphia. If, therefore, the process could be commenced *in rem*, the authority *of Bynkershoek would justify us; and whether it be com-
*426] menced in *rem*, or in *personam*, the principle of amenability is equally avowed.

3d. Nor will these sentiments be weakened by the want of a special provision in the constitution for an execution; since it is so provided in no case, not even where states are in litigation. This will be more properly arranged under the following head concerning the judicial act.

1. The judicial act recognises the jurisdiction over states. Instead of using the first expression in the constitution, to wit, "controversies *between*, &c.," it adopts the second, namely, "where a state shall be a party." Thus, it makes no distinction between a state as plaintiff, or as defendant: but evidently comprehends in the word "*party*" a state, as defendant, in one case, at least, where a state is opposed to a state. This, after what has been said, need not be further pressed.

2. The master objection is, that the law has prescribed no execution against a state; that none can be formed with propriety; and that, therefore, a judgment against a state must be abortive. It is true, that no express execution is given by the judicial act, or the process act. But has it ever been insinuated, that a dispute between two states is not within federal cognisance, because no execution is marked out? Or, that for a like reason, the court, given by the confederation, could not proceed?

The supreme court are either vested with authority by the judicial act, to form an execution, or possess it, as incidental to their jurisdiction. By the 14th section of the judicial act, the supreme court, as one of the courts of the United States, has power to issue writs of *scire facias*, *habeas corpus*, and all other writs, not specially provided for by the statute, which may be necessary for the exercise of their respective jurisdictions, and agreeable to the principles and usages of law. Executions for one state against another, are writs not specially provided for by statute, and are necessary for the exercise of the jurisdiction of the supreme court, in a contest between states; and although, in neither the common law, nor any statute, the form of such an execution appears; yet, is it agreeable to the principles and usages of law, that there should be a mode of carrying into force a jurisdiction which is

(*a*) See Bynk. c. 3, 4.

[1] But see Nathan *v.* Virginia, *ante*, p. 77, in note.

not denied. If, then, the supreme court may create a mode of execution, when a state is defeated at law, by a state, why may not the same means be exerted, where an *individual* is successful against a state?

Again, the process act, which dictates the modes of execution to the other courts, is silent as to the supreme court; it must, therefore, be either wholly without executions, or derive them from the foregoing section of the judicial act, or adopt them, on the ground of incidental *power. The total negation of execution is obviously inadmissible; and the construction of [*427 the judicial act, which has been just insisted on, would be sufficiently efficacious. But why may not executions even spring from the will of the supreme court, as the writs of *fieri facias*, *levari facias* and *distringas* were originally the creation of courts? Such an incidental authority is not of a higher tone than that of fine and imprisonment, which belongs to every court of record, without a particular grant of it.

But what species of execution can be devised? This, though, a difficult task, is not impracticable. And if it were incumbent on me to anticipate the measures of the court, I would suggest these outlines of conduct. First, that if the judgment be for the specific thing, it may be seized: or, secondly, if for damages, such property may be taken, as, upon the principles, and under the circumstances cited from Bynkershoek, would be the ground-work of jurisdiction over a foreign prince. However, it is of no consequence, whether the conjectures be accurate or not; as a correct plan can doubtless be discovered.

Still, we may be pressed with the final question: "What if the state is resolved to oppose the execution?" This would be an awful question indeed! He, to whose lot it should fall to solve it, would be impelled to invoke the God of wisdom to illuminate his decision. I will not believe, that he would recall the tremendous examples of vengeance, which in past days have been inflicted by those who claim, against those who violate, authority. I will not believe that in the wide and gloomy theatre, over which his eye should roll, he might perchance catch a distant glimpse of the federal arm uplifted. Scenes like these are too full of horror, not to agitate, not to rack, the imagination. But at last, we must settle on this result; there are many *duties*, precisely defined, which the states must perform. Let the remedy which is to be administered, if these should be disobeyed, be the remedy on the occasion which we contemplate. The argument requires no more to be said; it surely does not requires us to dwell on such painful possibilities. Rather, let me hope and pray, that not a single star in the American constellation will ever suffer its lustre to be diminished, by hostility against the sentence of a court, which itself has adopted.

But, after all, although no mode of execution should be invented, why shall not the court proceed to judgment? It is well known, that the courts of some states have been directed to render judgment, and there stop; and that the chancery has often tied up the hands of the common law, in a like manner. Perhaps, if a government could be constituted, without mingling at all the three orders of power, courts should, in *strict theory, only [*428 declare the law of the case, and the subject upon which the execution is to be levied; and should leave their opinions to be enforced by the executive. But that any state should refuse to conform to a solemn determina-

tion of the supreme court of the Union, is impossible, until she shall abandon her love of peace, fidelity to compact, and character.

Combine then into one view, the letter and the spirit of the constitution; the relation of the several states to the Union of the states; the precedents from other sovereignties; the judicial act, and process act; the power of forming executions; the little previous importance of this power to that of rendering of judgment; the influence under which every state must be to maintain the general harmony; and the inference, wili, I trust, be in favor of the first proposition; namely, that a state may be sued by the citizens of another state.

II. The next question is, whether an action of *assumpsit* will lie against a state? I acknowledge, that it does not follow, from a state being suable in some actions, that she is liable in every action. But that of *assumpsit* is of all others most free from cavil. Is not a state capable of making a promise? Certainly; as a state is a moral person, being an assemblage of individuals, who are moral persons. Vatt. lib. 1, § 2. On this ground, treaties and other compacts, are daily concluded between nations. On this ground, the United States and the particular states have moved, during and since the war. On this ground, the constitution transmitted from the old to the new government all the obligations of the former. Without it, every government must stagnate. But I shall enter into this matter no further, as it is open for discussion in almost every stage of the cause.

III. I affirm, in the third place, that the service of the summons on the governor and attorney-general, is a competent service. The service of process is solely for the purpose of notice to prepare for defence. The mode, if it be not otherwise prescribed by law, or long usage, is in the discretion of the court; and here that discretion must operate. The defence must rest either upon the three branches of government collectively, or one of them. But as the judiciary are manifestly disjoined from such an office, and the legislative are only to provide funds to answer damages, the practice of considering the executive, as the ostensible representative of a state, devolves upon it this function. In the instance of Georgia, her constitution establishes the governor as the channel of communication with the legislature; he is bound by oath to *defend* her; and he has instituted a suit, now depending in this court, in her behalf, against Brailsford and others. It was supererogation to serve *the process on the attorney-general; although this has satisfied even etiquette itself, by notifying the officer who is the instrument of defence.

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IV. As to the steps proper for compelling an appearance; these too, not being dictated by law, are in the breast of the court. I banish the comparison of states with corporations; and therefore, search for no resemblance in them. I prefer the scheme contained in the motion; because it tempers with moderation the preliminary measures; and postpones embarrassments, at any rate, until the close of the business. It is unnecessary to spend time on this head; as the mode is to me absolutely indifferent, if it be effectual, and respectful.

With this discussion, though purely legal, it will be impossible to prevent the world from blending political considerations. Some may call this an attempt to consolidate. But before such an imputation shall be pronounced, let them examine well, if the fair interpretation of the constitution

does not vindicate my opinions. Above all, let me personally assure them, that the prostration of state-rights is no object with me; but that I remain in perfect confidence, that with the power, which the people and the legislatures of the states indirectly hold over almost every movement of the national government, the states need not fear an assault from bold ambition, nor any approaches of covered stratagem.

The Court held the case under advisement, from the 5th to the 18th of February, when they delivered their opinions *seriatim*.

IREDELL, Justice.—This great cause comes before the court, on a motion made by the attorney-general, that an order be made by the court to the following effect: "That unless the state of Georgia shall, after reasonable notice of this motion, cause an appearance to be entered on behalf of the said state, on the fourth day of next term, or show cause to the contrary, judgment shall be entered for the plaintiff, and a writ of inquiry shall be awarded." Before such an order be made, it is proper that this court should be satisfied it hath cognisance of the suit; for, to be sure, we ought not to enter a conditional judgment (which this would be), in a case where we were not fully persuaded we had authority to do so.

This is the first instance wherein the important question involved in this cause has come regularly before the court. In the Maryland case, it did not, because the attorney-general of the state voluntarily appeared. We could not, therefore, without the greatest impropriety, have taken up the question suddenly. That case has since been compromised; but had it proceeded to trial, and a verdict been given for the plaintiff, it would have been our duty, previous to our giving judgment, to have well *considered whether we were warranted in giving it. I had then great doubts upon my [*430 mind, and should, on such a case, have proposed a discussion of the subject. Those doubts have increased since, and after the fullest consideration I have been able to bestow on the subject, and the most respectful attention to the able argument of the attorney-general, I am now decidedly of opinion, that no such action as this before the court can legally be maintained.

The action is an action of *assumpsit*. The particular question then before the court, is, will an action of *assumpsit* lie against a state? This particular question (abstracted from the general one, viz., whether, a state can in any instance be sued?) I took the liberty to propose to the consideration of lhe attorney-general, last term. I did so, because I have often found a great deal of confusion to arise from taking too large a view at once, and I had found myself embarrassed on this very subject, until I considered the abstract question itself. The attorney-general has spoken to it, in deference to my request, as he has been pleased to intimate, but he spoke to this particular question slightly, conceiving it to be involved in the general one; and after establishing, as he thought, that point, he seemed to consider the other followed of course. He expressed, indeed, some doubt how to prove what appeared so plain. It seemed to him (if I recollect right), to depend principally on the solution of this simple question; can a state assume? But the attorney-general must know, that in England, certain judicial proceedings, not inconsistent with the sovereignty, may take place against the crown, but that an action of *assumpsit* will not lie. Yet, surely, the King can assume as well as a state. So can the United States themselves, as well as

any state in the Union: yet, the attorney-general himself has taken some pains to show, that no action whatever is maintainable against the United States. I shall, therefore, confine myself, as much as possible, to the particular question before the court, though every thing I have to say upon it will effect every kind of suit, the object of which is to compel the payment of money by a state.

The question, as I before observed, is—will an action of *assumpsit* lie against a state? If it will, it must be in virtue of the constitution of the United States, and of some law of congress conformable thereto. The part of the constitution concerning the judicial power, is as follows, viz: Art. III., § 2. The judicial power shall extend, (1) To all cases, in law and equity, arising under the constitution, the laws of the United States, and treaties made, or which shall be made, under their authority: (2) To all cases affecting ambassadors, or other public ministers and consuls: (3) To all cases of admiralty and maritime jurisdiction: (4) To all controversies to
*431] which the *United States shall be a party: (5) To controversies between two or more states; between a state and citizens of another state; between citizens of different states; between citizens of the same state, claiming lands under grants of different states; and between a state or the citizens thereof, and foreign states, citizens or subjects. The constitution, therefore, provides for the jurisdiction wherein a state is a party, in the following instances: 1st. Controversies between two or more states: 2d. Controversies between a state and citizens of another state: 3d. Controversies between a state, and foreign states, citizens or subjects. And it also provides, that in all cases in which a state shall be a party, the supreme court shall have original jurisdiction.

The words of the general judicial act, conveying the authority of the supreme court, under the constitution, so far as they concern this question, are as follows: § 13. "That the supreme court shall have exclusive jurisdiction of all controversies of a civil nature, where a state is a party, except between a state and its citizens; and except also, between a state and citizens of other states or aliens, in which latter case, it shall have original, but not exclusive jurisdiction. And shall have, exclusively, all jurisdiction of suits or proceedings against ambassadors or other public ministers, or their domestics or domestic servants, as a court of law can have or exercise consistently with the law of nations; and original, but not exclusive jurisdiction, of all suits brought by ambassadors or other public ministers, or in which a consul or vice-consul shall be a party."

The supreme court hath, therefore, *first*, exclusive jurisdiction in every controversy of a civil nature: 1st. Between two or more states: 2d. Between a state and a foreign state: 3d. Where a suit or proceeding is depending against ambassadors, other public ministers, or their domestics or domestic servants. *Second*, original, but not exclusive jurisdiction, 1st. Between a state and citizens of other states: 2d. Between a state and foreign citizens or subjects: 3d. Where a suit is brought by ambassadors or other public ministers: 4th. Where a consul or vice-consul is a party. The suit now before the court (if maintainable at all) comes within the latter description, it being a suit against a state by a citizen of another state.

The constitution is particular in expressing the parties who may be the objects of the jurisdiction in any of these cases, but in respect to the subject

matter upon which such jurisdiction is to be exercised, used the word "controversies" only. The act of congress more particularly mentions civil controversies, a qualification of the general word in the constitution, which I do not doubt every reasonable man will think well warranted, for it *cannot be presumed, that the general word "controversies" was [*432 intended to include any proceedings that relate to criminal cases, which in all instances that respect the same governor only, are uniformly considered of a local nature, and to be decided by its particular laws. The word "controversy" indeed, would not naturally justify any such construction, but nevertheless it was perhaps a proper instance of caution in congress to guard against the possibility of it.

A general question of great importance here occurs. What controversy of a civil nature can be maintained against a state by an individual? The framers of the constitution, I presume, must have meant one of two things—Either, 1. In the conveyance of that part of the judicial power which did not relate to the execution of the other authorities of the general government (which it must be admitted are full and discretionary, within the restrictions of the constitution itself), to refer to antecedent laws for the construction of the general words they use: or, 2. To enable congress in all such cases to pass all such laws as they might deem necessary and proper to carry the purposes of this constitution into full effect, either absolutely at their discretion, or, at least, in cases where prior laws were deficient for such purposes, if any such deficiency existed.

The attorney-general has indeed suggested another construction, a construction, I confess, that I never heard of before, nor can I now consider it grounded on any solid foundation, though it appeared to me to be the basis of the attorney-general's argument. His construction I take to be this: "That the moment a supreme court is formed, it is to exercise all the judicial power vested in it by the constitution, by its own authority, whether the legislature has prescribed methods of doing so, or not." My conception of the constitution is entirely different. I conceive, that all the courts of the United States must receive, not merely their *organization* as to the number of judges of which they are to consist; but all their authority, as to the manner of their proceeding, from the legislature only. This appears to me to be one of those cases, with many others, in which an article of the constitution cannot be effectuated, without the intervention of the legislative authority. There being many such, at the end of the special enumeration of the powers of congress in the constitution, is this general one: "To make all laws which shall be necessary and proper for carrying into execution the foregoing powers, and all other powers vested by this constitution in the government of the United States, or in any department or officer thereof." None will deny, that an act of legislation is necessary to say, at least, of what number the judges are to consist; the President, with the consent of the senate, could not nominate a number at their *discretion. The [*433 constitution intended this article so far, at least, to be the subject of a legislative act. Having a right thus to establish the court, and it being capable of being established in no other manner, I conceive it necessarily follows, that they are also to direct the manner of its proceedings. Upon this authority, there is, that I know, but one limit; that is, "that they shall not exceed their authority." If they do, I have no hesitation to say, that

any act to that effect would be utterly void, because it would be inconsistent with the constitution, which is a fundamental law, paramount to all others, which we are not only bound to consult, but sworn to observe; and therefore, where there is an interference, being superior in obligation to the other, we must unquestionably obey that in preference. Subject to this restriction, the whole business of organizing the courts, and directing the methods of their proceeding, where necessary, I conceive to be in the discretion of congress. If it shall be found, on this occasion, or on any other, that the remedies now in being are defective, for any purpose, it is their duty to provide for, they no doubt will provide others. It is their duty to *legislate*, so far as is necessary to carry the constitution into effect. It is *ours* only to *judge*. We have no reason, nor any more right to distrust their doing their duty, than they have to distrust that we all do ours. There is no part of the constitution that I know of, that authorizes this court to take up any business where they left it, and in order that the powers given in the constitution may be in full activity, supply their omission by making *new laws* for *new cases;* or, which I take to be the same thing, applying *old principles* to *new cases* materially different from those to which they were applied before.

With regard to the attorney-general's doctrine of incidents, that was founded entirely on the supposition of the other I have been considering. The authority contended for is certainly not one of those necessarily incident to all courts merely as such.

If therefore, this court is to be (as I consider it) the organ of the constitution and the law, not of the *constitution* only, in respect to the manner of its proceeding, we must receive our directions from the legislature in this particular, and have no right to constitute ourselves an *officina brevium*, or take any other short method of doing what the constitution has chosen (and, in my opinion, with the most perfect propriety) should be done, in another manner.

But the act of congress has not been altogether silent upon this subject. The 14th section of the judicial act, provides in the following words: "All the before-mentioned courts of the United States shall have power to issue writs of *scire facias*, *habeas corpus*, and all other writs not specially provided for by statute, which may be necessary for the exercise of their
*434] respective *jurisdictions, and agreeable to the principles and usages of law." These words refer as well to the supreme court as to the other courts of the United States. Whatever writs we issue, that are necessary for the exercise of our jurisdiction, must be agreeable to the principles and usages of law. This is a direction, I apprehend, we cannot supersede, because it may appear to us not sufficiently extensive. If it be not, we must wait until other remedies are provided by the same authority. From this it is plain, that the legislature did not choose to leave to our own discretion the path to justice, but has prescribed one of its own. In doing so, it has, I think, wisely, referred us to principles and usages of law, already well known, and by their precision calculated to guard against that innovating spirit of courts of justice, which the attorney-general, in another case, reprobated with so much warmth, and with whose sentiments in that particular, I most cordially join. The principles of law to which reference is to be had, either upon the general ground I first alluded to, or upon the

special words I have above cited, from the judicial act, I apprehend, can be, either, 1st. Those of the particular laws of the state, against which the suit is brought. Or 2d. Principles of law, common to all the states. I omit any consideration arising from the word "usages," though a still stronger expression. In regard to the principles of the particular laws of the state of Georgia, if they in any manner differed, so as to affect this question, from the principles of law, common to all the states, it might be material to inquire, whether, there would be any propriety or congruity in laying down a rule of decision which would induce this consequence, that an action would lie in the supreme court against some states, whose laws admitted of a compulsory remedy against their own governments, but not against others, wherein no such remedy was admitted, or which would require, perhaps, if the principle was received, fifteen different methods of proceeding against states, all standing in the same political relation to the general government, and none having any pretence to a distinction in its favor, or justly liable to any distinction to its prejudice. If any such difference existed in the laws of the different states, there would seem to be a propriety, in order to induce uniformity (if a constitutional power for that purpose exists), that congress should prescribe a rule, fitted to this new case, to which no equal, uniform and impartial mode of proceeding could otherwise be applied.

But this point, I conceive, it is unnecessary to determine, because I believe there is no doubt, that neither in the state now in question, nor in any other in the Union, any particular legislative mode, authorizing a compulsory suit for the recovery of money against a state, was in being, either when the constitution *was adopted, or at the time the judicial act was passed. Since that time, an act of assembly for such a purpose has been passed [*435 in Georgia. But that surely could have no influence in the construction of an act of the legislature of the United States, passed before.

The only principles of law, then, that can be regarded, are those common to all the states. I know of none such, which can affect this case, but those that are derived from what is properly termed "the common law," a law which I presume is the ground-work of the laws in every state in the Union, and which I consider, so far as it is applicable to the peculiar circumstances of the country, and where no special act of legislation controls it, to be in force in each state, as it existed in England (unaltered by any statute), at the time of the first settlement of the country. The statutes of England that are in force in America differ perhaps in all the states; and therefore, it is probable, the common law in each is in some respects different. But it is certain, that in regard to any common-law principle which can influence the question before us, no alteration has been made by any statute, which could occasion the least material difference, or have any partial effect. No other part of the common law of England, it appears to me, can have any reference to this subject, but that part of it which prescribes remedies against the crown. Every state in the Union, in every instance where its sovereignty has not been delegated to the United States, I consider to be as completely sovereign, as the United States are in respect to the powers surrendered. The United States are sovereign as to all the powers of government actually surrendered: each state in the Union is sovereign, as to all the powers reserved. It must necessarily be so, because the United States have no claim to any authority but such as the states have surrendered to

them: of course, the part not surrendered must remain as it did before. The powers of the general government, either of a legislative or executive nature, or which particularly concerns treaties with foreign powers, do for the most part (if not wholly) affect individuals, and not states: they require no aid from any state authority. This is the great leading distinction between the old articles of confederation, and the present constitution. The judicial power is of a peculiar kind. It is indeed commensurate with the ordinary legislative and executive powers of the general government, and the power which concerns treaties. But it also goes further. Where certain parties are concerned, although the subject in controversy does not relate to any of the special objects of authority of the general government, wherein the separate sovereignties of the states are blended in one common mass of supremacy, yet the general government has a judicial authority in
*436] regard to such *subjects of controversy, and the legislature of the United States may pass all laws necessary to give such judicial authority its proper effect. So far as states, under the constitution, can be made legally liable to this authority, so far, to be sure, they are subordinate to the authority of the United States, and their individual sovereignty is in this respect limited. But it is limited no further than the necessary execution of such authority requires. The authority extends only to the decision of controversies in which a state is a party, and providing laws necessary for that purpose. That surely can refer only to such controversies in which a state *can* be a party; in respect to which, if any question arises, it can be determined, according to the principles I have supported, in no other manner than by a reference either to pre-existent laws, or laws passed under the constitution and in conformity to it.

Whatever be the true construction of the constitution in this particular; whether it is to be construed as intending merely a transfer of jurisdiction from one tribunal to another, or as authorizing the legislature to provide laws for the decision of all possible controversies in which a state may be involved with an individual, without regard to any prior exemption; yet it is certain, that the legislature has in fact proceeded upon the former supposition, and not upon the latter. For, besides what I noticed before, as to an express reference to principles and usages of law, as the guide of our proceeding, it is observable, that in instances like this before the court, this court hath a *concurrent jurisdiction* only; the present being one of those cases where, by the judicial act, this court hath *original* but not *exclusive* jurisdiction. This court, therefore, under that act, can exercise no authority, in such instances, but such authority as, from the subject-matter of it, may be exercised in some other court. There are no courts with which such a concurrence can be suggested but the circuit courts, or courts of the different states. With the former, it cannot be, for admitting that the constitution is not to have a restrictive operation, so as to confine all cases in which a state is a party, exclusively to the supreme court (an opinion to which I am strongly inclined), yet, there are no words in the definition of the powers of the circuit court, which give a color to an opinion, that where a suit is brought against a state, by a citizen of another state, the circuit court could exercise any jurisdiction at all. If they could, however, such a jurisdiction, by the very terms of their authority, could be only concurrent with the courts of the several states. It follows, therefore, unquestionably, I think, that look

ing at the act of congress, which I consider is on this occasion the limit of our authority (whatever further might be constitutionally enacted), we can exercise no authority, in the present instance, *consistently with the [*437 clear intention of the act, but such as a proper state court would have been, at least, competent to exercise, at the time the act was passed.

If, therefore, no new remedy be provided (as plainly is the case), and consequently, we have no other rule to govern us, but the principles of the pre-existent laws, which must remain in force until superseded by others, then it is incumbent upon us to inquire, whether, previous to the adoption of the constitution (which period, or the period of passing the law, in respect to the object of this inquiry, is perfectly equal), an action of the nature like this before the court could have been maintained against one of the states in the Union, upon the principles of the common law, which I have shown to be alone applicable. If it could, I think, it is now maintainable here: if it could not, I think, as the law stands at present, it is not maintainable; whatever opinion may be entertained, upon the construction of the constitution as to the power of congress to authorize such a one. Now, I presume, it will not be denied, that in every state in the Union, previous to the adoption of the constitution, the only common-law principles in regard to suits that were in any manner admissible in respect to claims against the state, were those which, in England, apply to claims against the crown; there being certainly no other principles of the common law which, previous to the adoption of this constitution, could, in any manner, or upon any color, apply to the case of a claim against a state, in its own courts, where it was solely and completely sovereign, in respect to such cases, at least. Whether that remedy was strictly applicable or not, still, I apprehend, there was no other. The only remedy, in a case like that before the court, by which, by any possibility, a suit can be maintaineda gainst the crown, in England, or, at any period from which the common law, as in force in America, could be derived, I believe, is that which is called a *Petition of right*. It is stated, indeed, in Com. Dig. 105, that "until the time of Edward I., the King might have been sued in all actions, as a common person." And some authorities are cited for that position, though it is even there stated as a doubt. But the same authority adds—"but now, none can have an action against the King, but one shall be put to sue to him by petition." This appears to be a quotation or abstract from Theloall's Digest, which is also one of the authorities quoted in the former case. And this book appears (from the law catalogue) to have been printed so long ago as the year 1579. The same doctrine appears (according to a quotation in Blackstone's Commentaries, 1 vol. 243) to be stated in Finch's Law 253, the first edition of which, it seems, was published in 1579. This also more fully appears in the case of *The Bankers*, and particularly from the celebrated argument of *Somers, in the time [*438 of Wm. III., for, though that case was ultimately decided against Lord Somers's opinion, yet, the ground on which the decision was given, no way invalidates the reasoning of that argument, so far as it respects the simple case of a sum of money demandable from the King, and not by him secured on any particular revenues. The case is reported in Freeman, vol. 1, p. 331; 5 Mod. 29; Skin. 601; and lately very elaborately in a small pamphlet published by Mr. Harrgave, which contains all the reports at